Montgomery County District Court

Cause No. 2026-CV-0020

Jose Reynolds, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	January 9, 2026
Plaintiff's counsel:	Michael Bolton, Morris & Miller LLP

PARTIES

Plaintiff Jose Reynolds is an individual residing in Texas who was the driver and sole occupant of the vehicle involved in the collision described below.

Defendant is an automobile insurance company authorized to write and issue motor vehicle policies in the State of Texas. Defendant may be served through its registered agent for service of process as provided by Texas law.

FACTS

On December 6, 2024, Plaintiff was lawfully operating his vehicle on a public roadway in Pasadena, Texas. Plaintiff was traveling in the right-hand lane when a vehicle opreated by an insured of Defendant, while changing lanes from the adjacent lane, moved into Plaintiff's lane without first confirming that the movement could be made safely. The insured vehicle struck the side of Plaintiff's vehicle, forcing it toward the shoulder and causing both vehicles to sustain substantial damage.

Following the impact, Plaintiff's head struck the interior of his vehicle, and he was subsequently diagnosed with a concussion. Plaintiff timely reported the collision and his resulting injuries to Defendant and submitted a claim under the applicable coverage.

NEGLIGENCE

The insured driver owed Plaintiff a duty to exercise ordinary care in operating a motor vehicle, including the duty to check mirrors and blind spots, signal intent, and yield the right of way before chagning lanes. The insured driver breached that duty by changing lanes into an occupied lane without adequate precaution. Defendant, as the insurer of the at-fault driver, is responsible for the resulting damages to the extent provided under the policy and Texas law.

DAMAGES

As a direct result of the collision, Plaintiff has suffered a concussion, along with headaches, dizziness, and cognitive difficulties that have required medical treatment and time away from work. Plaintiff has incurred medical expenses, lost wages, property damage, and diminished enjoyment of life, and will likely incur additional expenses in the future. Plaintiff seeks damages in the amount of $102,000.00, together with pre- and post-judgment interest, court costs, and such other relief as the Court deems just.